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Case Number: 25AVCV00714 Hearing Date: September 8, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

LUTHER CHARLES CRAYTON III, an

individual and as successor of interest to the

ESTATE OF LUTHER CHARLES CRAYTON VI; KALIEA BROWN, as successor in interest to the ESTATE OF SHANE WALLACE, C.F.F.C, a minor, by and through RYAN ANDERSON,

guardian ad litem; K.R.W., a minor, by and

through CRYSTAL COLEMAN, guardian ad litem; D.A.W. a minor, by and through

DOMONIQUE GETAW, guardian ad litem;

M.E.C.C., a minor, by and through ELIZABETH PICART, guardian ad litem; M.W.C., a minor, by and through ELIZABETH PICART, guardian ad litem,

Plaintiffs,

v.

BG HOTEL GROUP, LLC, a foreign limited liability company; RED LION HOTELS CORPORATION, a Colorado Corporation dba AMERICAN VALUE INN & SUITES; and DOES 1 through 20, inclusive,

Defendants.

[TENTATIVE]

RULING ON MOTIONS

Date of Hearing: September 8, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a negligence and wrongful death action arising from the death of Decedents Luther Crayton IV and Shane Wallace (Decedents) on the property of American Value Inn & Suites. Defendant Red Lion Hotels Corporation (erroneously sued as Red Lion Hotels d/b/a American Value Inn & Suites) (Red Lion) presently demurs to certain causes of action asserted in the First Amended Complaint (FAC).

On June 5, 2025, Plaintiffs Luther Charles Crayton III, an individual and successor of interest to the estate of Luther Charles Crayton VI, Kaliea Brown, as successor in interest to the estate of Shane Wallace, C.F.F.C., a minor, by and through Ryan Anderson, Guardian Ad Litem, K.R.W., a minor, by and through Crystal Coleman, Guardian Ad Litem, D.A.W., a minor, by and through Domonique Getaw, Guardian Ad Litem, and M.E.C.C. and M.W.C., minors, by and through Elizabeth Picart, Guardian Ad Litem (collectively Plaintiffs) filed their complaint against Defendants BG Hotel Group, LLC (BGHG) and Red Lion (together Defendants).

On April 21, 2026, Plaintiffs filed their first amended complaint (FAC) against Defendants, asserting five causes of action for (1) negligence, (2) negligent supervision and training against BGHB only, (3) premises liability, (4) survival, and (5) wrongful death. Specifically, Plaintiffs allege that on June 7, 2023, Luther Crayton IV was a resident at the American Value Inn & Suites, and Shane Wallace, his brother, was visiting. (FAC, ¶¶ 21-22.) That evening, Plaintiffs state that Decedents were in the motel room, when a group of unknown and unidentified men entered the room brandishing guns, and ultimately shot and killed both Decedents. (FAC, ¶¶ 23-30.) Plaintiffs allege the motive was robbery at the motel. (FAC, ¶ 31.)

On April 22, 2026, Accelerant Specialty Insurance Company (Accelerant) filed a motion for leave to intervene, which was subsequently granted.

On May 27, 2026, Red Lion filed the present demurrer to and motion to strike portions of the FAC.

On May 29, 2026, Accelerant filed its answer in intervention for BGHG.

On August 27, 2026, Red Lion filed notices of non-opposition to its demurrer, motion to strike, and request for judicial notice.

The demurrer and motion to strike remain unopposed.

II. Preliminary Procedural Issues

Meet and Confer Requirement – Before filing a demurrer or motion to strike, the demurring or moving party is required to meet and confer at least five days before the date the responsive pleading is due, in person, by telephone, or by video conference, with the party who filed the pleading for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The demurring or moving party shall file and serve with the demurrer or motion to strike a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading demurred or objected to failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Brett N. Taylor, counsel for Red Lion, asserts he sent meet and confer correspondence to Plaintiffs' counsel regarding the deficiencies in the FAC and authority in support of the demurrer. (Taylor Decl., ¶ 3.) On March 25, 2026, counsel for the parties met and conferred telephonically, during which Plaintiffs' counsel stated they would review Red Lion's objections to the complaint, confer with BGHG, and stipulated to an extension for Red Lion's responsive deadline to one week following BGHG's responsive deadline. (Taylor Decl., ¶ 4.) Taylor's colleagues corresponded with Plaintiffs' counsel via email on three more occasions throughout April and twice more in May, and no resolution was reached as Plaintiffs' counsel represented they would not be further amending the FAC. (Taylor Decl., ¶¶ 5-8.) The Court finds this requirement is satisfied and finds the demurrer and motion to strike are timely in light of counsel's purported stipulation to extend Red Lion's time to file a responsive pleading to the FAC.

III. Request for Judicial Notice

Red Lion's Request for Judicial Notice – Red Lion requests that the Court take judicial notice of the following documents, all of which have been provided:

1. Red Lion's Form 10-K for the fiscal year ended December 31, 2019, filed with the United States Securities and Exchange Commission on March 23, 2020, reflecting Red Lion's corporate structure and identifying hotel brands – including "American Best Value Inn" – as part of its brand portfolio.
2. Red Lion's Form 8-K, dated December 30, 2020, filed with the United States Securities and Exchange Commission, announcing the agreement for acquisition by Sonesta International Hotels Corporation ("Sonesta") and describing Red Lion's business as a franchisor and licensor of multiple hotel brands.
3. Red Lion's Form 8-K, dated March 17-18, 2021, filed with the United States Securities and Exchange Commission, confirming completion of the acquisition by Sonesta and that Red Lion became a wholly owned subsidiary of Sonesta following that transaction.
4. Official corporate records for Red Lion Hotels Corporation from the California and Maryland Secretaries of State, including its Statement and Designation by Foreign Corporation (2003), Amended Statement by Foreign Corporation (2005), and Corporate Disclosure Statements (2006, 2007, and 2010) reflecting Red Lion's registration as a foreign corporation qualified to do business in California and Red Lion's conversion from a Washington corporation to a Maryland corporation (2021); all of which indicate that Red Lion is neither a Colorado nor a New Jersey entity.
5. Publicly available company profile records for Red Lion Hotels Corporation, including records obtained from Dun & Bradstreet and S&P Capital IQ, reflecting that Red Lion conducts business under the name "RLH Corporation," operates (through subsidiaries) hotel brands—including "American Best Value Inn"—through franchising and licensing arrangements

rather than as fictitious business names or “dba” designations, and is a subsidiary of Sonesta rather than BG Hotel Group LLC.

6. Records of the California Secretary of State and Los Angeles County Registrar-Recorder/County Clerk fictitious business name database, reflecting searches for “American Value Inn & Suites” and related variations and showing no registered fictitious business name associated with Red Lion Hotels Corporation corresponding to the name alleged in the First Amended Complaint.

Red Lion’s request is GRANTED pursuant to Evidence Code sections 452, subdivisions (c) and (h) and 453. (See also *Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 752-54.) The Court only takes judicial notice of the fact of the documents, the filing of the documents, the legal effects thereof, the facts that clearly derive from said legal effects, and facts not reasonably subject to dispute. (Id. at 754.)

IV. Legal Standard

Standard for Demurrer – A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) Courts must “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank*, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn*, supra, 147 Cal.App.4th at 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 126.) The threshold for meeting this burden is low, and “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

Standard for Motion to Strike – A motion to strike lies where either (1) there is “irrelevant, false or improper matter inserted in any pleading,” or (2) where a pleading or part thereof is “not drawn or filed in conformity with the laws of this state, a court rule or order of court.” (Code Civ. Proc., § 436.) The Court has the authority to strike out any part of a pleading not filed in conformity with an order of the court. (See Ibid; *Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528.)

When the pleadings are defective, “the defect may be raised by demurrer or motion to strike, or by motion for judgment on the pleadings.” (*Coyne v. Krempels* (1950) 36 Cal.2d 257, 262.) The grounds for a motion to strike shall appear on the face of the challenged pleading or form any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) A matter to be judicially noticed shall be specified in the notice of motion. (Code Civ. Proc., § 437, subd. (b).) The court then may strike out any irrelevant, false, or improper matter inserted in any pleading and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (*Perlman v. Municipal Court* (1979) 99 Cal.App.3d 568, 575.)

V. Discussion

Application – Red Lion demurs to each cause of action asserted against it in the FAC pursuant to Code of Civil Procedure section 430.10, subdivision (e) on the grounds that the FAC fails to state facts sufficient to constitute a cause of action. (Demurrer, p. 5:2-25.) Red Lion also moves to strike paragraphs 8-9, 80-81, 83-86, 94-98, and Prayer for Relief ¶ 3 from the FAC on the grounds that they are improper and not drawn in conformity with the laws of this state. (Motion, p. 5:2-6:27.) The causes of action asserted against Red Lion are: (1) First Cause of Action – Negligence, (2) Third Cause of Action – Premises Liability, (3) Fourth Cause of Action – Survival, (4) Fifth Cause of Action – Wrongful Death.

a. Red Lion's Demurrer

Red Lion argues none of Plaintiffs' causes of action can withstand demurrer as Red Lion had no duty to Decedents, Plaintiffs fail to plead which acts and omissions alleged in the FAC are attributable to Red Lion, and the FAC is devoid of factual allegations to support the existence of a causal connection between Red Lion's conduct and the Decedents' deaths. (Demurrer, p. 6:6-14.)

i. First Cause of Action – Negligence

To state a cause of action for negligence, Plaintiff must plead the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause" (4) "resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

Red Lion argues Plaintiffs' first cause of action for negligence fails because the FAC (1) does not allege Red Lion owed a duty to Decedents, (2) does not allege specific facts regarding Red Lion's particular acts or omissions constituting a breach of any duty owed, and (3) does not allege facts to support the contention that Red Lion's actions were the proximate cause of Decedents' injuries and deaths or Plaintiffs' damages. (Demurrer, p. 9:14-19, 13:23-26, 14:7-9.)

a. Red Lion's Ownership and Control of the Property

As a preliminary matter, Red Lion also argues that Plaintiffs fail to plead facts showing Red Lion owned, possessed, managed, or controlled the property, was involved in the hiring, training, or supervision of hotel security, staff, or otherwise had involvement with implementing any security protocols on the property, and that it is insufficient for Plaintiffs to rely exclusively on an unsubstantiated conclusion that Red Lion owns, manages, or operates the premises without any allegation that Red Lion exercised control over the property. (Demurrer, p. 9:17-18, 15:14-17, 16:5-9.) On the contrary, the FAC states that "Red Lion...owns, manage[s] and operate[s] the subject premises," that Red Lion "employed security, staff and its regular employees mentioned herein," and that "Red Lion...[has] control over the safety and condition of the subject premises." (FAC, ¶¶ 54, 68, 71.) These allegations are sufficient to survive demurrer, as "the complaint need only allege [ultimate] facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*Ferrick v. Santa Clara University* (2014) 231 Cal.App.4th 1337, 1341.) Moreover, "'less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff. [Citation.]'... There is no need to require specificity in the pleadings because 'modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.'" (*Roger v. County of Riverside* (2020) 44 Cal. App. 5th 510, 533.) Here, the Court can assume Red Lion has knowledge of facts regarding its own ownership, operation, and control of the property.

Red Lion's argument that the FAC indicates that BGHG was the entity that controlled, managed, and maintained access to the property at all relevant times is unconvincing. (Demurrer, p. 12:17-27.) Red Lion points to paragraphs 51-53 and 55-63 in the FAC, all pled as to the second cause of action for negligent supervision and training against BGHG only. Red Lion,

however, omits any mention of paragraph 54 which reads “Defendant RED LION employed security, staff and its regular employees mentioned herein this Complaint.” Red Lion also skips over paragraph 59, which reads: “Most importantly, Defendant BG[HG] is responsible for the harm and damages because it owns Defendant RED LION and has control over its independent contractors and employees but failed to investigate the subject premises this recklessly allowing unleashed violence to occur within the subject premises placing many customers in harms’ way.” Reading the other allegations against BGHG in context, it appears BGHG’s alleged liability and negligence is based upon its ownership of Red Lion, its knowledge of the wrongful conduct of both its own employees and those of Red Lion, and its failure “to investigate, provide advice and engage with its subsidiaries regarding the hiring of said security, staff, and employees.” (FAC, ¶ 55.)

Furthermore, while allegations regarding Red Lion’s ownership, management, operation, and control over the safety and condition of the premises are not incorporated or pled within Plaintiffs’ first cause of action, the Court must “not only treat the demurrer as admitting all material facts properly pleaded, but also ‘give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.’” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.) Here, Plaintiffs have sufficiently pled Red Lion’s ownership and control over the property in the FAC and referred to its ownership and control throughout the FAC.. Plaintiffs have sufficiently pled that Red Lion owned, operated, managed, and controlled the property, and the Court must take this allegation as true on demurrer.

b. Duty of Care

Existence of a duty is a question of law to be resolved by the Court. (Jimenez v. Hayes Apartment Homes, LLC (2025) 115 Cal.App.5th 1072, 1084.)

Plaintiffs’ FAC alleges that Red Lion, doing business as American Value Inn & Suites, pursuant to California Civil Code section 1714 owed a duty to ensure the patrons at the premises were safe and protected, to protect patrons and customers from violence, and to use due care in preventing persons from entering the premises with deadly weapons so as not to cause injury to themselves or others. (FAC, ¶¶ 9, 38(a), 40-42.)

Civil Code section 1714 provides the general negligence framework that “[e]veryone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.” (Civ. Code, § 1714, subd. (a).) Here, read in context of Plaintiffs’ allegations that Red Lion was negligent because security and employees allowed an unidentified man to enter the premises with a gun that could kill any person on the premises and failed to recognize a robbery and gun shooting on the premises, it appears Plaintiffs’ negligence cause of action is based upon Red Lion’s status as either owner, operator, or manager of the real property on which the subject incident occurred, and on Red Lion’s willful acts or want of ordinary care or skill in the management of its property, resulting in Decedents’ being killed by unnamed third parties.

“A landowner owes a duty to exercise reasonable care to maintain his or her property in such a manner as to avoid exposing others to an unreasonable risk or injury. [Citations.] The failure to fulfill the duty is negligence. [Citation.]” (Barnes v. Black (1999) 71 Cal.App.4th 1473, 1478 (citations omitted).) “In general, each person has a duty to act with reasonable care under the circumstances. [Citations.] However, ‘one owes no duty to control the conduct of another, nor to warn those endangered by such conduct.’ [Citation.] ‘A person who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another unless there is some relationship between them which gives rise to a duty to act.’” (Regents of University of California v. Superior Court (2018) 4 Cal.5th 607, 619; Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 235 [“A defendant may owe an affirmative duty to protect another from the conduct of third parties if he or she has a ‘special relationship’ with the other person.”].)¿

Courts apply a two-step inquiry to determine “whether a defendant has a legal duty to take action to protect the plaintiff from injuries caused by a third party.” (Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 209.) “First, the court must determine whether there exists a special relationship between the parties or some other set of circumstances giving rise to an affirmative duty to protect. Second, if so, the court must consult the factors described in Rowland (v. Christian (1968) 69 Cal.2d 108) to determine whether relevant policy considerations counsel limiting that duty.” ¿(Ibid.)¿ The two-step inquiry is based on the premise that “even when two parties may be in a special relationship, the unforeseeability of the kind of harm

suffered by the plaintiff or other policy factors may counsel against establishing an affirmative duty for one party to protect another.” (Brown, *supra*, 11 Cal.5th at 219.) “A court might conclude that duty should not be imposed because, for example, the type of harm the plaintiff suffered was unforeseeable, or because there was no moral blameworthiness associated with defendant’s conduct, notwithstanding the defendant’s special relationship to the plaintiff. Put differently, even when a special relationship gives rise to an affirmative duty to protect, a court must still consider whether the policy considerations set out in *Rowland* warrant a departure from that duty in the relevant category of cases.” (Id. at 222.)

a. First Step – Special Relationship

Cases in which a special relationship exists generally involve some kind of dependency or reliance. (Melton v. Boustred (2010) 183 Cal.App.4th 521, 535.) “Courts have found such a special relationship in cases involving the relationship between business proprietors such as shopping centers, restaurants, and bars, and their tenants, patrons, or invitees. In addition, such special relationships triggering a duty to protect another from foreseeable injury caused by a third party have been found in other contexts, including those of (i) common carriers and passengers, (ii) innkeepers and their guests, and (iii) mental health professionals and their patients.” (Id. at 535 (citations omitted, emphasis added).)

Specifically, a commonly recognized special relationship that may give rise to a legal duty in a particular case is that “between a possessor of land and members of the public who enter in response to the landowner’s invitation,” particularly in the context of a hotel owner and its patrons. (Peterson v. San Francisco Community College Dist. (1984) 36 Cal.3d 799, 806, 808-09 [enrolled student using a parking lot in exchange for a fee was an invitee to whom a possessor of the premises would owe a duty of care]; see also Gray v. Kircher (1987) 193 Cal.App.3d 1069, 1073 [“[t]he relationship between innkeeper and guests is recognized as sufficiently ‘special’ to impose liability under certain circumstances within the parameters of that relationship,” and “it is undisputed that owners or possessors of land, and particularly innkeepers, have a duty of care to protect invitees or tenants from the reasonably foreseeable criminal or tortious conduct of third persons”]; Lawrence v. La Jolla Beach & Tennis Club, Inc. (2014) 231 Cal.App.4th 11, 22 [“[h]otel proprietors have a special relationship with their guests that gives rise to a duty”]; Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 237 [commercial proprietors’ duty of care to maintain land in reasonably safe condition includes taking reasonable steps to secure the premises against foreseeable third party criminal acts].)

Red Lion asserts that the FAC pleads “zero facts” showing Red Lion had any special relationship with Decedents. (Demurrer, p. 5:25-6:1, 12:15-17.) The FAC, in fact, alleges that (1) Red Lion owns, employs, funds and operates and conducts business in Los Angeles, California and Los Angeles County and owned, managed, and operated the subject property (FAC, ¶¶ 9, 68), (2) Red Lion employed security, staff and its regular employees on the premises (FAC, ¶ 54), (3) Red Lion had control over the safety and condition of the premises (FAC, ¶ 71), (4) Decedent Luther Crayton IV was a resident on the property, operating as “American Value Inn & Suites” (FAC, ¶ 21), (5) Decedent Shane Wallace, brother of Decedent Crayton, was visiting Crayton in his motel room (FAC, ¶ 21), (6) the subject incident resulting in the robbing, shooting, and killing of Decedents occurred on the property while Decedents were in the motel room and after Decedent Wallace ran outside to the parking lot (FAC, ¶¶ 22-27, 81), (7) Red Lion owns, manages, and operates the parking lot on the premises (FAC, ¶ 68), and (8) both Decedents were lawfully on the premises as patrons (FAC, ¶ 90).

Plaintiffs have sufficiently pled facts supporting the existence of a special relationship between Red Lion as owner and operator of a motel and Decedents as patrons thereof, a relationship recognized by law and which triggers a legal duty on Red Lion’s part.

b. Second Step – Rowland Factors

Even where a special relationship exists, the scope of a landowner’s duty to protect from third party criminal conduct requires balancing the foreseeability of harm against the burden to be imposed. (Castaneda v. Olsher (2007) 41 Cal.4th 1205, 1213.) “The following factors determine the scope of the landowner’s duty of care under the relevant circumstances: the foreseeability of harm to the injured party; the degree of certainty he or she suffered injury; the closeness of the connection between the defendant’s conduct and the injury suffered; the moral blame attached to the defendant’s conduct; the policy of preventing future harm; the extent of the burden to the defendant and the consequences to the community of imposing a duty of care with resulting liability for breach; and the availability, cost, and prevalence of insurance for the risk involved.

[Citation.]” (Rowland v. Christian (1968) 69 Cal. 2d 108, 113.)

“Foreseeability and the extent of the burden to the defendant are ordinarily the crucial considerations, but in a given case one or more of the other factors may be determinative of the duty analysis.” (Castaneda, supra, 41 Cal.4th at 1213.) “In each case, however, the existence and scope of a property owner’s duty to protect against third party crime is a question of law for the court to resolve.” (Ibid.) As the Brown Court stated, “even when two parties may be in a special relationship, the unforeseeability of the kind of harm suffered by the plaintiff or other policy factors may counsel against establishing an affirmative duty for one party to protect the other.” (Brown, supra, 11 Cal.5th at 219.) “[A] court might conclude that duty should not be imposed because, for example, the type of harm the plaintiff suffered was unforeseeable, or because there was no moral blameworthiness associated with the defendant’s conduct, notwithstanding the defendant’s special relationship to the plaintiff. Put differently, even when a special relationship gives rise to an affirmative duty to protect, a court must still consider whether the policy considerations set out in Rowland warrant a departure from that duty in the relevant category of cases.” (Id. at 222.)

Red Lion argues the FAC fails to plead sufficient allegations as to the foreseeability of the criminal conduct that caused Decedents’ death, and that under the Rowland factors and as currently pled, the FAC does not give rise to any duty owed by Red Lion. (Demurrer, p. 13:1-15.) The Court agrees.

Before imposing a duty of care, a plaintiff must establish a high degree of foreseeability of harm before imposing a duty of care. “[T]he requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner’s premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well established policy in this state.” (Ann M. v. Pacific Plaza Shopping Ctr. (1993) 6 Cal.4th 666, 679, footnote omitted.) “Heightened foreseeability is satisfied by a showing of prior similar criminal incidents (or other indications of a reasonably foreseeable risk of violent criminal assaults in that location) and does not require a showing of prior nearly identical criminal incidents.” (Delgado, supra, 36 Cal.4th at 245.)

Courts have consistently held that even in the event of prior similar occurrences known to the defendant, “more than a general prospect of danger is required ‘before we can hold a defendant liable for the criminal acts of third parties.’” (Hanouchian v. Steele (2020) 51 Cal.App.5th 99, 111; see, e.g., Wiener v. Southcoast Childcare Centers, Inc. (2004) 32 Cal.4th 1138, 11150-51 [“it is difficult if not impossible in today’s society to predict when a criminal might strike,” and a duty cannot be imposed on a defendant “[w]ithout prior similar criminal acts, or even any indication of prior criminal acts or intrusions of any type in the surrounding businesses”]; Margaret W. v. Kelley R. (2006) 139 Cal.App.4th 141, 156 [“foreseeability must be measured by what the defendant actually knew” before a duty attaches, and no case has held “that a defendant owed a duty to take steps to prevent or respond to third party crime on the basis of constructive knowledge or information the defendant should have known.”]; Williams v. Fremont Corners, Inc. (2019) 37 Cal.App.5th 654, 668 [evidence of three prior similar instances of third party conduct insufficient to establish foreseeability because general awareness of the possibility of future incidents and general knowledge of the possibility of violent criminal conduct is not enough to create a duty].) Thus “[t]o establish heightened foreseeability for third party criminal conduct, our authorities have consistently required actual knowledge—not constructive, inferential, or knowledge by association—to impose a burdensome legal duty.” (Hanouchian, supra, 51 Cal.App.5th at 111.)

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Applying the foregoing authorities to this case, the question is whether Plaintiffs allege facts in the FAC demonstrating a high degree of foreseeability that harm would come to Decedents if adequate security measures were not taken to protect them from the harm suffered. Such facts are not alleged. There are no allegations of any prior similar incidents in the area, in or around the property, or any prior criminal incidents at all. There is no allegation or fact pled that Red Lion knew of any such instances, that any had ever been reported, or that the same or similar criminal conduct had ever transpired to give Red Lion reason to know of the risk of harm to its patrons. The FAC is completely silent on the issue of whether the third party criminal conduct at issue in this case was even remotely foreseeable to Red Lion. The FAC also does not plead facts sufficient to attach any moral blame on Red Lion for its alleged conduct, because there are no factual allegations indicating that Red Lion’s implementing enhanced security measures, such as hiring additional security or conducting searches of its patrons or their personal belongings, was in any way warranted. (See FAC, ¶ 75.)

Accordingly, the FAC fails to plead facts sufficient to establish that Red Lion owed any duty to Decedents. It follows that Plaintiffs have also failed to adequately plead Red Lion's breach of any duty, or that any breach was the cause of Decedents' and Plaintiffs' injuries and damages.

Accordingly, Red Lion's demurrer is SUSTAINED as to the first cause of action.

ii. Third Cause of Action – Premises Liability

"The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) For the reasons stated above, because the FAC does not plead facts sufficient to establish any duty owed by Red Lion, breach of any such duty, or causation, Plaintiffs' third cause of action fails.

Red Lion's demurrer is SUSTAINED as to the third cause of action.

iii. Fourth Cause of Action – Survival

A survival action is a "separate and distinct cause of action which belonged to the decedent before death but, by statute, survives the event." (Quiroz, supra, 140 Cal. App. 4th at 1264.) For the reasons stated herein, the FAC fails to allege facts sufficient to give rise to a cause of action against Red Lion based in negligence, as the FAC does not plead facts sufficient to impose any duty on Red Lion owed to Decedents prior to or at the time of their deaths.

Red Lion also argues Plaintiffs do not have standing to bring this claim. (Demurrer, p. 16:22.) Pursuant to Code of Civil Procedure section 377.30, "[a] cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest... and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest." Any person who seeks to commence a survival action must execute and file an affidavit or declaration stating (1) the decedent's name, (2) the date and place of decedent's death, (3) that "No proceeding is now pending in California for administration of the decedent's estate," (4) if the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest, (5) either "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding" or "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding" with facts in support thereof, (6) that "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding," and (7) that "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct." (Code Civ. Proc., § 377.32, subd. (a).) Where more than one person executes the affidavit or declaration, the statements required by subdivision (a) shall be modified as appropriate, and a certified copy of the decedent's death certificate must be attached. (Code Civ. Proc., § 377.32, subd. (b)-(c).)

No Plaintiff has filed an affidavit as required to bring this action. Therefore, Plaintiffs have failed to establish that they have the requisite standing to assert this claim on behalf of Decedents.

Accordingly, the demurrer is SUSTAINED as to the fourth cause of action.

iv. Fifth Cause of Action – Wrongful Death

"The elements of the cause of action for wrongful death are the tort (negligence or other wrongful act), the resulting death, and the damages, consisting of the pecuniary loss suffered by the heirs." (Quiroz v. Seventh Ave. Center (2006) 140 Cal. App. 4th 1256, 1263.) "In any action for wrongful death resulting from negligence, the complaint must contain allegations as

to all the elements of actionable negligence. [Citation.]” (Jacoves v. United Merchandising Corp. (1992) 9 Cal.App.4th 88, 105.) The FAC bases the wrongful death claim on Red Lion’s negligent, reckless, and careless ownership, operation, control, maintenance, repair, permission, management, supervision, and facilitation of the operation of the Property, causing a dangerous condition to exist which caused Decedents’ deaths. (FAC, ¶ 92.) For the reasons stated herein, the FAC does not state facts sufficient to constitute a cause of action for negligence or other tort against Red Lion. Therefore, Plaintiffs’ fifth cause of action for wrongful death fails.

Red Lion’s demurrer is SUSTAINED as to the fifth cause of action.

v. Leave to Amend

Red Lion requests that the demurrer to each cause of action be sustained without leave to amend because Plaintiffs have already had one opportunity to cure the deficiencies in the complaint and failed to do so. (Demurrer, p. 6:2-5.) Red Lion’s argument is contrary to California’s liberal policies of amendment. While the FAC was purportedly filed in response to ongoing meet and confer efforts, no demurrer has ever been previously filed in this case by either Defendant. Plaintiffs have amended once, without leave of court, as a matter of right. Furthermore, the Court finds a reasonable possibility of amendment. The defects in the FAC identified herein relate to (1) failure to plead certain facts, which may exist and are not precluded by the FAC as pled, and (2) lack of standing due to Plaintiffs’ failure to file an affidavit establishing standing for the survival cause of action pursuant to Code of Civil Procedure section 377.32. These deficiencies may reasonably be cured.

Accordingly, Red Lion’s demurrer is SUSTAINED with leave to amend.

b. Red Lion’s Motion to Strike

Red Lion moves to strike the following from the FAC:

1. ¶ 8 – “Defendant, BG HOTEL GROUP LLC, (“BG Hotel”) . . . is the parent company for Red Lion.”
2. ¶ 9 – “Defendant, RED LION HOTELS CORPORATION (“Red Lion”) dba AMERICAN VALUE INN & SUITES (“subject premises”) is a New Jersey Foreign Corporation and at all times in this Complaint is an entity that owns, employs, funds and operates and conducts business in Los Angeles, California and Los Angeles County.”
3. ¶ 80 – “By reason of the incident and the above afore-stated allegations and facts regarding Defendants, and each of them, reckless negligence conduct caused massive, severe, significant harm to Decedents Luther and Shane after he was shot and endured extensive, irreparable pain coupled unspeakable trauma before ultimately passing and deaths which was a direct result of Defendants reckless negligence.”
4. ¶ 81 – “Decedents Luther and Shane did not deserve to lie in the middle of a cold dark hotel room and parking lots in excruciating pain until succumbing to deaths.”
5. ¶ 83 – “Unfortunately, Decedents Luther and Shane died due to the reckless omissions and action of the Defendants, and each of them thus substantiating that Plaintiff is entitled to claim survival for the loss of his two sons who had man more years to live and potential to be a proactive member of society.”
6. ¶ 84 – “An analysis of the facts and law indicate that Defendants, and each of them are liable for Decedents Luther and Shane’s death because of the extremity of the action Father Crayton seeks damages for the loss of his son.”

7. ¶ 85 – “As a result of Defendants, and each of their failures and negligence, Father Crayton has been damaged and has suffered damages in an amount in excess of \$2,000,000.00.”

8. ¶ 86 – “Further, as a result of the death of Decedents Luther and Shane, Plaintiff Father Crayton has suffered damages in an amount according to proof.”

9. ¶ 94 – “Prior to death, Decedents Luther and Shane experienced great pain and suffering causing shock and injury to his nervous system, all of which caused him great mental, physical and nervous strain, pain, and suffering prior to death.”

10. ¶ 95 – “Decedents Luther and Shane was ultimately shot several times and the died as a result of the dangerous condition and the unlawful allowance of handgun use in this case.”

11. ¶ 96 – “As a direct and proximate result of the shooting causing Decedents Luther and Shane’s deaths, Father Crayton has incurred funeral and burial expenses for the Decedents Luther and Shane’s, loss of companionship, comfort, affection, society, care, solace and moral support.”

12. ¶ 97 – “As a result of Defendants’ conduct causing a wrongful death, Plaintiff has been damaged and has suffered damages in an amount in excess of \$4,000,000.00.”

13. ¶ 98 – “Plaintiff experiences and endures actual damages in an amount subject to proof at trial.”

14. Prayer for Relief, ¶ 3 – “WHEREFORE, Plaintiff, Luther Charles Crayton III prays for judgment against Defendants, and each of them as follows:… 3. For attorney fees.”

Red Lion’s demurrer is sustained, and Red Lion asserts its motion to strike is only salient to the extent the Court declines to sustain the demurrer to the FAC. (Motion, p. 4:14:16, n. 2.) Because the Court has sustained Red Lion’s demurrer as to all four causes of action asserted against it, the motion to strike is rendered moot and the Court does not rule on the merits of Red Lion’s arguments.

The Court makes no determination as to whether any of the above requests to strike are meritorious. However, in light of Red Lion’s arguments, and its request for judicial notice setting forth Red Lion’s corporate structure and operational status, on which the Defendants’ respective liabilities appear to be partially based, the Court finds that it is reasonable and just not to limit leave to amend only to the deficiencies set forth above in Red Lion’s demurrer, but to broaden leave to amend so that Plaintiffs may, if they so choose, amend the FAC to address any of the deficiencies argued by Red Lion in its motion to strike.

Therefore, in addition to granting leave to amend to cure the defects raised on demurrer, Plaintiffs are permitted to amend the allegations in the FAC, whether through correction or removal, to the extent they deem reasonable to address any of the deficiencies asserted in the motion to strike. (See Code Civ. Proc., § 472a, subd. (c) [“if a demurrer is sustained, the court may grant leave to amend the pleading upon any terms as may be just”]; Code Civ. Proc., § 576 [“[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading”].) The Court reiterates that it does not rule on the motion, that none of these allegations are stricken, and that Plaintiffs are under no obligation at this stage to amend or remove any of the challenged allegations in the FAC. The Court encourages parties and counsel to continue their good faith meet and confer efforts prior to amendment regarding the issues raised in the motion to strike.

Accordingly, Red Lion’s motion to strike is denied without prejudice as moot.

VI. Conclusion

Defendant Red Lion Hotels Corporation's Demurrer is SUSTAINED. Plaintiffs are granted leave to amend to address the deficiencies set forth in Red Lion's demurrer and discussed herein. Plaintiffs are further permitted narrow leave to amend the First Amended Complaint to address any deficiency in the pleadings raised in Red Lion's motion to strike, if Plaintiffs so choose. Plaintiffs to file a Second Amended Complaint in conformity with this Order within 30 days.

Defendant Red Lion Hotels Corporation's Demurrer Motion to Strike is denied without prejudice as MOOT.